

SOLVED PRACTICE WORKBOOK

State Legislature - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

State Legislature	
REHEARSED TEACHING NAVIGATOR — BASICS CORE FIRST	
01	CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE The decisive contrast is between a unicameral legislature & Governor
02	ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL The decisive contrast is between incidental constitutional text
03	LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER The Governor's discretion is exclusively responsible only to the
04	LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC The entire sub-structure is built upon electoral source Code logic
05	DURATION: DISSOLUTION VERSUS CONTINUITY The decisive contrast is between The Council is permanent, one kind
06	QUALIFICATIONS, OATH AND DISQUALIFICATION The decisive contrast is between Article 168 requires each of
07	SESSIONS, PROROGATION AND DISSOLUTION The decisive contrast is between 50 months cannot intervene
08	GOVERNOR'S ADDRESS AND MESSAGES The decisive contrast is between followed by Motion of Thanks and
09	PRESIDING OFFICERS: OFFICES AND CONTINUITY Its principal consequence is that Each House chooses its presiding
10	IMPARTIALITY AND THE SPEAKER PROBLEM Its principal consequence is that The Tenth Schedule assigns
11	QUORUM, VOTING AND VACANCIES The operative mechanism matters because question 10 members or
12	PRIVILEGES AND FREEDOM OF SPEECH Its principal consequence is that Article 168 protects members from
13	ORDINARY BILLS IN A UNICAMERAL STATE The decisive contrast is between subject to special rules, an ordinary
14	ORDINARY BILLS IN A BICAMERAL STATE Ordinary Bills in a bicameral State operates through Council's rights /
15	MONEY BILLS: ASSEMBLY MONOPOLY The decisive contrast is between Article 109 defines a State Money Bill
16	GOVERNOR'S ASSENT UNDER ARTICLES 200-201 Its principal consequence is that Under Article 201, the President may
17	ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS The decisive contrast is between The Governor causes the annual
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24	STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT The decisive contrast is between 50 days delay and internal case change
25	WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES Its principal consequence is that Reservation is linked to post census
26	ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT The decisive contrast is between Article 212 protects proceedings
27	FULL ARTICLES 168-212 RAPID MAP Technically, Full Articles 168-212 rapid map is analysed by relating

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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State Legislature - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQ loop - balanced deterministic non-patterned placement

OM1. State bicameralism

Which statement is correct?

A. Parliament alone may initiate a Council without State action. B. The Governor is outside the State legislature. C. Every State must have two Houses. D. Every State has an Assembly, while only specified States have a Council.

Answer: D.

Explanation: [FACT] Article 168 requires an Assembly in every State; Councils are optional.

OM2. Article 169

Parliament may create a Council after:

A. an Assembly special-majority resolution. B. a simple-majority Council resolution. C. presidential reference to the Supreme Court. D. ratification by half the States.

Answer: A.

Explanation: [FACT] The Assembly initiates through the prescribed special majority.

OM3. Parliamentary majority

The Article 169 law is passed by Parliament:

A. as an ordinary law by simple majority. B. by two-thirds of total membership. C. only in a joint sitting. D. only after State ratification.

Answer: A.

Explanation: [FACT] It is not treated as an Article 368 amendment.

OM4. Council strength

The Council's strength is ordinarily:

A. at least 60. B. not more than one-third of Assembly strength and not below 40. C. fixed by the Governor. D. exactly half the Assembly.

Answer: B.

Explanation: [FACT] Article 171 supplies both limits.

OM5. Local bodies

Approximately what share of a Council is elected by local authorities?

A. One-sixth. B. One-twelfth. C. One-third. D. Two-thirds.

Answer: C.

Explanation: [FACT] Local authorities elect one-third.

OM6. Graduates

Graduates elect:

A. one-third. B. half. C. one-sixth. D. one-twelfth.

Answer: D.

Explanation: [FACT] The graduate and teacher categories each elect one-twelfth.

OM7. Governor nominations

The Governor nominates:

A. all teacher members. B. one-sixth of the Council. C. one-third of the Assembly. D. one-twelfth of the Council.

Answer: B.

Explanation: [FACT] One-sixth is nominated for specified knowledge or experience.

OM8. Council duration

Which is correct?

A. Half retires every three years. B. Council is permanent and one-third retires every two years. C. Council dissolves with the Assembly. D. Council has a five-year collective term.

Answer: B.

Explanation: [FACT] Individual members ordinarily serve six years.

OM9. Minimum age

Minimum age for Assembly membership is:

A. 25. B. 30. C. 35. D. 21.

Answer: A.

Explanation: [FACT] Assembly 25; Council 30.

OM10. Assembly term

The normal Assembly term is:

A. permanent. B. six years. C. five years unless sooner dissolved. D. four years.

Answer: C.

Explanation: [FACT] Article 172 sets five years.

OM11. Quorum

State House quorum is:

A. one-fifth. B. one-tenth, with no minimum. C. exactly ten in every House. D. ten members or one-tenth, whichever is greater.

Answer: D.

Explanation: [FACT] Article 189 contains the ten-member floor.

OM12. Casting vote

The presiding officer:

A. cannot vote in a tie. B. has two ordinary votes. C. always votes first. D. ordinarily has no first vote but has a casting vote on equality.

Answer: D.

Explanation: [FACT] Article 189 provides the casting vote.

OM13. Speaker after dissolution

On Assembly dissolution, the Speaker:

A. becomes Governor. B. continues until immediately before the first meeting of the new Assembly. C. vacates immediately. D. continues for six months regardless of the new House.

Answer: B.

Explanation: [FACT] Article 179 preserves continuity.

OM14. Speaker removal

Removal requires:

A. majority of all then members after 14 days' notice. B. Governor's order. C. simple majority of those present without notice. D. two-thirds of total membership.

Answer: A.

Explanation: [FACT] The effective-majority rule and notice apply.

OM15. Defection adjudicator

Tenth Schedule State-member disqualification is initially decided by:

A. Speaker or Chairman. B. High Court. C. Governor on ECI advice. D. Chief Minister.

Answer: A.

Explanation: [FACT] The presiding officer decides, subject to judicial review.

OM16. Article 192

For a non-defection Article 191 disqualification question, the Governor:

A. acts personally without advice from any institution. B. sends it to Parliament. C. refers it to the Speaker. D. obtains and acts according to the Election Commission's opinion.

Answer: D.

Explanation: [FACT] Article 192 provides this route.

OM17. Ordinary Bill delay

Maximum Council delay across Article 197 stages is approximately:

A. six months. B. one year. C. four months. D. fourteen days.

Answer: C.

Explanation: [FACT] Three months plus one month.

OM18. Joint sitting

For disagreement between State Houses:

A. President chairs a joint sitting. B. no constitutional joint sitting exists. C. Governor always calls a joint sitting. D. Supreme Court resolves amendments.

Answer: B.

Explanation: [FACT] Assembly preference prevails through Article 197.

OM19. Money Bill introduction

A State Money Bill may be introduced:

A. only in the Council. B. only in the Assembly. C. in either House. D. only in Parliament.

Answer: B.

Explanation: [FACT] The Assembly has initiation monopoly.

OM20. Council on Money Bill

The Council:

A. can amend conclusively. B. can reject permanently. C. may recommend within 14 days. D. has three months.

Answer: C.

Explanation: [FACT] Assembly may accept or reject recommendations.

OM21. Money Bill certificate

Who certifies a State Money Bill?

A. Advocate General. B. Governor. C. Council Chairman. D. Assembly Speaker.

Answer: D.

Explanation: [FACT] Article 199 assigns the Speaker.

OM22. Confidence

The State Council of Ministers is collectively responsible to:

A. the Legislative Assembly. B. the Governor personally. C. the Legislative Council. D. both Houses equally.

Answer: A.

Explanation: [FACT] Article 164(2) establishes Assembly responsibility.

OM23. Demands for grants

Demands for grants are voted by:

A. the Council alone. B. the Governor. C. both Houses. D. the Assembly alone.

Answer: D.

Explanation: [FACT] The power of the purse follows the confidence chamber.

OM24. Charged expenditure

Charged expenditure:

A. requires a joint sitting. B. is neither discussed nor voted. C. is voted only by Council. D. may be discussed but is not voted.

Answer: D.

Explanation: [FACT] Article 203 preserves discussion but excludes voting.

OM25. Article 200 return

The Governor may return for reconsideration:

A. a demand for grant. B. a constitutional amendment Bill. C. a non-Money Bill. D. a Money Bill only.

Answer: C.

Explanation: [FACT] A Money Bill cannot be returned under Article 200.

OM26. Mandatory reservation

Reservation for the President is mandatory where a Bill:

A. changes House rules. B. alters a municipal boundary. C. endangers the constitutional position of the High Court by derogating from its powers. D. creates a Council.

Answer: C.

Explanation: [FACT] The second proviso to Article 200 controls.

OM27. Article 201

After a reserved non-Money Bill is returned and repassed:

A. Governor must enact it without presentation. B. President must assent. C. it becomes law automatically. D. presidential assent is not constitutionally compelled.

Answer: D.

Explanation: [FACT] Article 201 differs from the direct Article 200 return loop.

OM28. Assent status

The November 2025 advisory opinion supports:

A. rigid judicial timelines in every case. B. absolute non-justiciability of inaction. C. limited review of prolonged unexplained inaction without deemed assent. D. automatic deemed assent after one month.

Answer: C.

Explanation: [CURRENT] Courts may direct action but cannot invent assent.

OM29. Privilege

Article 194 primarily protects:

A. member speech and votes in the House/committees. B. every private act of a legislator. C. the Governor as a House member. D. all party communications.

Answer: A.

Explanation: [FACT] Privilege is function-linked.

OM30. Article 212

Article 212 bars courts from questioning proceedings merely for:

A. lack of legislative competence. B. mala fides. C. procedural irregularity. D. violation of Fundamental Rights.

Answer: C.

Explanation: [FACT] Substantive constitutional review remains possible.

OM31. Women's reservation

The 106th Amendment reservation applies to:

A. Lok Sabha and State Legislative Assemblies, subject to activation conditions. B. Rajya Sabha and Councils. C. every nominated seat. D. Legislative Councils only.

Answer: A.

Explanation: [FACT/CURRENT] It does not cover Councils and is not operational yet.

OM32. Delimitation trigger

Which is accurate as of 18 August 2026?

A. The failed 2026 Bills are law. B. Delimitation automatically occurred on 1 January 2026. C. Publication of the relevant post-2026 census figures and delimitation remain pending. D. Women's reservation already applies to all Assembly elections.

Answer: C.

Explanation: [CURRENT] Census and delimitation dates remain unresolved.

OM33. Rajya Sabha comparison

Unlike a Council, Rajya Sabha:

A. is optional. B. is directly elected by citizens. C. has federal representation and special Articles 249/312 powers. D. may be abolished by Article 169 law.

Answer: C.

Explanation: [FACT] The Council has no equivalent federal power.

OM34. Governor's special address

Article 176 requires it:

A. after each general election and at the first session of each year. B. only during emergency. C. only in bicameral States. D. before every sitting.

Answer: A.

Explanation: [FACT] These are the two constitutional occasions.

OM35. Assembly dissolution and Bills

Which statement is generally correct?

A. Bills pending in or passed by the Assembly at relevant stages may lapse on dissolution. B. Council Bills always become law. C. Money Bills transfer to Parliament. D. Every Bill survives dissolution.

Answer: A.

Explanation: [FACT] Lapse analysis depends on House and stage.

OM36. Council verdict

The most accurate constitutional description is:

A. permanent veto chamber. B. co-equal federal chamber. C. optional, permanent and mainly suspensive/advisory chamber. D. confidence chamber.

Answer: C.

Explanation: [ANALYSIS] This captures Article 169 status and Articles 197-199 weakness.

Remedial MCQs - strict B -> C -> B -> A rotation

R1. Bicameral-State trap

Which is currently bicameral?

A. Tamil Nadu. B. Odisha. C. Rajasthan. D. Karnataka.

Answer: D.

Remedy: Use KATBUM.

R2. Article 169 trap

The Assembly resolution uses:

A. unanimous vote. B. total-membership majority plus two-thirds present and voting. C. simple majority only. D. half-State ratification.

Answer: B.

Remedy: Special Assembly resolution, ordinary parliamentary law.

R3. Composition trap

Teachers elect:

A. one-third. B. one-twelfth. C. half. D. one-sixth.

Answer: B.

Remedy: $\frac{1}{3} - \frac{1}{12} - \frac{1}{12} - \frac{1}{3} - \frac{1}{6}$.

R4. Council power trap

On an ordinary Bill, Council ultimately:

A. sends it to Supreme Court. B. has absolute veto. C. forces a joint sitting. D. can delay but not defeat Assembly preference.

Answer: D.

Remedy: Three months plus one month; no State joint sitting.

R5. Speaker trap

The Assembly Speaker after dissolution:

A. vacates instantly. B. continues until immediately before the new Assembly's first meeting. C. becomes caretaker Chief Minister. D. continues for a fixed six years.

Answer: B.

Remedy: Continuity is an explicit Article 179 exception.

R6. Quorum trap

Correct quorum:

A. ten or one-tenth, whichever is smaller. B. ten or one-tenth, whichever is greater. C. one-tenth only. D. twenty in every House.

Answer: B.

Remedy: Remember the State ten-member floor.

R7. Disqualification trap

Non-defection Article 191 disputes go to:

A. Governor acting according to ECI opinion. B. President. C. Speaker without review. D. Chief Minister.

Answer: A.

Remedy: Article 192 differs from the Tenth Schedule.

R8. Privilege trap

Article 194:

A. bars all judicial review. B. protects every criminal act. C. makes Governor a House member. D. protects member speech/votes in legislative functions.

Answer: D.

Remedy: Privilege is member- and function-specific.

R9. Money Bill trap

Council may:

A. veto permanently. B. certify it. C. recommend within 14 days. D. amend conclusively.

Answer: C.

Remedy: Speaker certifies; Assembly decides recommendations.

R10. Confidence trap

No-confidence is effective in:

A. Governor's office. B. Assembly only. C. either House. D. Council only.

Answer: B.

Remedy: Collective responsibility is to the Assembly.

R11. Reservation trap

Women's reservation presently covers constitutionally:

A. Councils only. B. Lok Sabha and Assemblies, but activation remains pending. C. every House immediately. D. Rajya Sabha only.

Answer: B.

Remedy: Separate constitutional provision from operational implementation.

R12. Article 212 trap

Courts remain able to review:

A. substantive constitutional illegality despite Article 212. B. no legislative matter. C. every minor procedural error. D. only Council composition.

Answer: A.

Remedy: Procedural irregularity is not substantive illegality.

PYQS AND ANSWER PRACTICE

Verified routed Mains PYQs

PYQ 1 - UPSC GS-II 2021, Q14 - direct owner

Verified neutral demand: Explain the constitutional provisions for Legislative Councils and review their working. **15 marks | 250 words**

Demand decoding

- "Explain" requires Articles 169 and 171 plus legislative powers.
- "Review" requires a judgement on actual utility and weakness.
- A complete answer must compare the Council with the Assembly and Rajya Sabha.

Model answer

Claim: [FACT] A Legislative Council is an optional, permanent and structurally subordinate second chamber. Its constitutional purpose is reconsideration and wider representation, not equality with the Assembly.

Named evidence: Under Article 169, an Assembly initiates creation or abolition through a total-membership majority plus two-thirds present and voting; Parliament then enacts an ordinary law, which is not an Article 368 amendment. Article 171 limits strength to one-third of the Assembly with a minimum of 40 and distributes membership among local authorities, graduates, teachers, MLAs and Governor-nominated experts. Five-sixths are indirectly elected through

STV and one-sixth nominated. Councillors serve six years, with one-third retiring every two years.

Working and analysis: Articles 197-199 make the Council weak. It may delay an ordinary Bill for about four months but cannot veto it; on a Money Bill it can only recommend within 14 days. It neither votes grants nor removes the ministry, which is responsible only to the Assembly. Unlike the Rajya Sabha, it has no federal or Article 249/312-type special power.

Review: It can check haste, preserve continuity and include local/expert voices. Yet dated occupational constituencies, indirect election, cost and patronage create the "ornamental chamber" criticism.

Qualification and verdict: [LIMIT] Utility varies by State and political composition. Councils should be retained where they produce independent scrutiny, but their electorates, nominations and committee work need reform; where they merely duplicate the Assembly, Article 169 abolition remains constitutionally legitimate.

Examiner comment: Do not stop after composition. "Working" demands Articles 197-199, confidence/finance weakness and a reviewed conclusion.

Evidence chain: Article 169 -> Article 171 -> permanence -> Articles 197-199 -> Assembly confidence -> Rajya Sabha comparison -> reform.

Why this earns marks: It answers provision and performance, uses precise fractions and timelines, supplies counter-arguments and ends with a conditional verdict.

PYQ 2 - UPSC GS-II 2023, Q5 - direct owner

Verified neutral demand: Discuss the role of Presiding Officers of State legislatures in maintaining order and impartial conduct of business. **10 marks | 150 words**

Model answer

Claim: [FACT] The Speaker/Chairman is the procedural guardian of the State House, but the constitutional design gives the office powers whose legitimacy depends on visible impartiality.

Named evidence: Articles 178-185 establish the offices and removal safeguards. The presiding officer interprets rules, maintains order, recognises members, decides admissibility, uses a casting vote under Article 189 and, in the Assembly, certifies Money Bills under Article 199. Under the Tenth Schedule the Speaker/Chairman adjudicates defection.

Analysis: These powers determine who speaks, which motion proceeds, whether a government survives and whether bicameral scrutiny applies. Continued party membership creates a conflict, especially when defection petitions are delayed.

Judicial control: *Kihoto Hollohan* subjects tribunal-like defection decisions to review. *Keisham Meghachandra* urged decisions ordinarily within three months and proposed an independent tribunal.

Qualification and verdict: [LIMIT] The tribunal and deadline are not enacted law. Impartiality therefore needs reasoned rulings, equal rules, stronger conventions and transfer of defection adjudication to a neutral body. The chair is indispensable, but neutrality must be institutional rather than merely personal.

Examiner comment: Link each power to impartial business; avoid a generic list of Speaker functions.

Evidence chain: Articles 178-185 -> Articles 189/199 -> Tenth Schedule -> *Kihoto* -> *Keisham* -> reform.

Why this earns marks: It fits 150 words conceptually, combines functions with the neutrality problem and gives targeted reform.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2018 GS-I Q39

Verified neutral demand: Vacation and continuation of the Legislative Assembly Speaker's office.

Doctrinal solution

- [FACT] The Speaker vacates on ceasing to be a member, resignation to the Deputy Speaker, or removal by a majority of all then Assembly members after 14 days' notice.
- [FACT] Dissolution does not immediately vacate the Speaker's office; the Speaker continues until immediately before the first meeting of the new Assembly.

Elimination rule: Reject any statement that dissolution instantly ends the Speaker's tenure.

Prelims route 2 - 2019 GS-I Q53

Verified neutral demand: Governor's address/messages and State legislative procedure.

Doctrinal solution

- [FACT] Article 175 permits address and messages.
- [FACT] Article 176 requires the special address after a general election and at the first session of each year.
- [FACT] Article 208 concerns House rules; Article 212 protects against review of procedural irregularity.

Elimination rule: Distinguish the discretionary Article 175 power from the constitutionally required Article 176 occasions.

Prelims route 3 - 2025 GS-I Q59 - cross-owned

Verified neutral demand: Governor's immunity and immunity for words spoken in a State legislature.

Doctrinal solution

- [FACT] Article 361 protects the Governor in specified ways.
- [FACT] Article 194 speech/vote immunity applies to House members.
- [FACT] The Governor is a legislative component under Article 168 but not a House member.

Elimination rule: Do not transfer member privilege to the Governor.

Original solved Mains practice

M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10 marks, 150 words)

Model answer

Claim: [FACT] A Council offers a second deliberative stage but lacks the authority to defeat the elected Assembly.

Named evidence: Article 197 permits only about four months' delay on ordinary Bills. Articles 198-199 limit it to 14-day recommendations on Money Bills. It cannot vote grants or remove the ministry, which is responsible only to the Assembly.

Analysis: These limits preserve democratic primacy while allowing reconsideration, expert participation and institutional continuity. Different party control may expose drafting flaws or compel public justification.

Qualification: [LIMIT] Delay without committee capacity can become mere duplication, and graduate/teacher constituencies may no longer represent scarce expertise.

Verdict: The Council is valuable when delay produces evidence-based scrutiny; it is ornamental when it only reproduces party patronage. Retention should therefore be linked to composition reform and measurable legislative work.

Evidence chain: Articles 197-199 -> finance/confidence weakness -> scrutiny value -> reform.

M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic arguments. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Uniform abolition is as crude as automatic retention because Article 169 deliberately makes State bicameralism optional.

For abolition: Councils impose cost, cannot block ordinary or Money Bills, may provide patronage posts and rest partly on dated occupational electorates. Their existence depends on Assembly initiative and ordinary parliamentary law, confirming that they are not federal essentials.

For retention: Permanence preserves memory; local-body, teacher, graduate and expert categories diversify representation; a second chamber can slow hasty majoritarian legislation and strengthen committees. Where the Council has a different majority, it may force reasons and negotiation.

Named evidence: Articles 169 and 171 establish optionality and composition; Articles 197-199 establish subordination. Rajya Sabha comparison shows that weakness is real but does not prove zero deliberative value.

Reform: Modernise electorates, publish nomination criteria, strengthen committee referral, assess legislative outputs and prevent use as rehabilitation for defeated politicians.

Verdict: Use a State-specific retain-reform-abolish test. Councils that add independent scrutiny deserve reform; those that merely delay and reward patronage may legitimately be abolished through Article 169.

M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15 marks, 250 words)

Model answer

Claim: [FACT] The Speaker is simultaneously procedural judge, constitutional certifier and politically elected member, creating an unavoidable neutrality challenge.

Named evidence: Articles 178-181 establish election, continuity and removal. Article 189 provides the casting vote; Article 199 assigns Money Bill certification; the Tenth Schedule assigns defection adjudication. *Kihoto Hollohan* subjects this tribunal role to review. *Keisham Meghachandra* urged decisions ordinarily within three months and an independent tribunal. *Subhash Desai* requires recognition of the political party's authorised whip.

Analysis: Agenda control, recognition and delayed disqualification can alter confidence arithmetic. Party membership means the adjudicator may have an institutional stake in the outcome.

Counterpoint: The office needs decisional authority to preserve order, and excessive external intervention may weaken House autonomy.

Reform: Require reasoned orders, equal scheduling rules, transparent recognition decisions, strong removal safeguards and transfer defection disputes to a neutral tribunal.

Verdict: The Speaker should remain master of procedure, but not final partisan judge of government survival. Institutional separation is stronger than appeals to personal restraint.

M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks, 250 words)

Model answer

Claim: [FACT] State bicameralism is formally dual but functionally Assembly-dominant.

Ordinary legislation: Either House may ordinarily initiate, but Article 197 allows the Council only three months plus one month of delay; there is no joint sitting.

Finance: Money Bills originate only in the Assembly on recommendation; the Council has 14 days to recommend. Demands for grants are voted only by the Assembly.

Executive accountability: Ministers may participate in either House, but collective responsibility and no-confidence belong only to the Assembly.

Constitutional status: The Assembly can initiate Council creation or abolition under Article 169. Council members neither elect the President nor possess a Rajya Sabha-like federal role.

Counterpoint: The Council is permanent and can debate, question ministers, initiate non-Money Bills and add expert/local representation.

Verdict: The Assembly decides; the Council advises and delays. This asymmetry protects direct democratic control but makes Council legitimacy depend on the quality of scrutiny rather than formal power.

M5. "State legislative decline strengthens executive federalism at the cost of representative federalism." Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] When State Houses sit briefly, scrutinise few Bills and rely on weak committees, policy shifts from elected deliberation toward cabinets, bureaucracy and Union-State executive bargaining.

Mechanism: Rushed Bills reduce opposition and stakeholder input. Weak financial scrutiny lowers departmental accountability. Ordinances and delegated legislation enlarge executive law-making. Limited research support makes members dependent on departments. Intergovernmental decisions then occur through councils, ministries and party leadership rather than State legislatures.

Constitutional evidence: Articles 168-212 create a complete legislative and financial-control structure; Article 164(2) makes the executive responsible to the Assembly. A weak Assembly therefore hollows the responsible-government link even if formal confidence survives.

Qualification: [LIMIT] Executive coordination is necessary in a complex federation, and sitting-day performance varies widely across States.

Reform: Adopt predictable calendars, pre-legislative publication, subject committees, non-partisan research, post-legislative review and tracked government responses.

Verdict: Strong State autonomy requires not only powerful State executives but capable State legislatures. Representative federalism begins inside each State House.

M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union oversight. (15 marks, 250 words)

Model answer

Claim: [FACT] Articles 200-201 make assent a constitutional checkpoint rather than a second political mandate.

Mechanism: The Governor may assent, withhold, return a non-Money Bill or reserve it. Repassage after direct return normally closes withholding. Reservation is mandatory where High Court powers are endangered. For a reserved Bill, the President may assent, withhold or direct return; repassage does not compel assent.

Analysis: Return enables State reconsideration, mandatory reservation protects judicial structure and presidential consideration provides Union oversight where the Constitution contemplates it. Yet unexplained delay suspends an elected legislature without taking an accountable decision.

Current control: [CURRENT] The November 2025 Article 143 opinion rejects rigid judicial deadlines and automatic deemed assent while permitting limited review of prolonged unexplained inaction.

Qualification: [LIMIT] It is advisory and did not overrule the April judgment. Courts may direct decision, not dictate the option.

Verdict: Federal balance requires prompt, reasoned constitutional choice: scrutiny without pocket veto and review without judicial substitution.

M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words)

Model answer

Claim: [ANALYSIS] Article 171's mixed design sought expertise and local representation, but its legitimacy depends on whether twentieth-century categories still serve democratic scrutiny.

Strengths: Local-authority members connect decentralisation to State law-making. Graduate and teacher constituencies may add policy knowledge. MLA-elected and nominated members bring experience and permit representation outside mass elections. STV supports proportionality.

Weaknesses: Graduate status is no longer a narrow expertise proxy; teacher constituencies exclude other public-service professions; electoral rolls and turnout may be weak; nominations may become partisan patronage; MLA-elected seats can rehabilitate defeated politicians.

Institutional context: Because Articles 197-199 make the Council weak, it cannot justify itself through decisional power. It must justify itself through better debate, committees and representation.

Reforms: Update occupational categories after evidence review, strengthen local-body voice, publish objective nomination criteria, require conflict disclosure, invest in research and measure committee/Bill contributions.

Qualification: [LIMIT] Article 171 redesign needs national constitutional/parliamentary action; State-specific experimentation is constrained.

Verdict: Reform should preserve plural representation while replacing inherited status categories with transparent, contemporary expertise and democratic linkage.

M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks, 250 words)

Model answer

Claim: [CURRENT] Delimitation and one-third women's reservation could transform Assembly size, constituency boundaries, party recruitment and federal representation, but neither transformation is operational yet.

Constitutional sequence: The 84th Amendment freeze lasts until publication of the first census after 2026. The 106th Amendment links women's reservation in the Lok Sabha and Assemblies to the first census after commencement and subsequent delimitation. Reservation includes SC/ST sub-reservation and seat rotation.

Potential effects: Fresh boundaries may correct population disparities but create North-South and population-control concerns. Larger or redrawn Assemblies may alter ministry caps, constituency workload and regional balance. Women's reservation can broaden descriptive representation and party pipelines but rotation may weaken constituency continuity.

Current evidence: [CURRENT] The 2026 Bills proposed using the 2011 Census and changing the sequence but failed to become law. Census 2027 publication and delimitation dates remain unknown.

Qualification: [LIMIT] No current seat projection is legally operative, and Councils are outside the reservation.

Verdict: Legitimacy needs transparent criteria, federal consultation, timely census publication and safeguards against penalising successful population stabilisation. Representation reform must expand inclusion without converting demographic change into federal distrust.